BUSINESS STATUS CERTIFICATION

Offeror's Legal Name	______________________
Address 1	______________________
Address 2	______________________
City/State/Zip	______________________
POC Name	__________ **Title** __________
POC Phone	__________ **Email**__________
DUNS No.	______________________
CAGE Code	__________ **Expiration Date** __________
Proposed NAICS Code(s)	______________________
Industry Size Standard	☐ **Small** ☐ **Large** ☐ **Foreign**

In accordance with 10 U.S.C. 2371b paragraph d, Offerors shall meet one of the following conditions to be considered for an award:

☐ 1. There is at least one nontraditional defense contractor or nonprofit research institution participating to a significant extent in the prototype project.

If checked, significant participants are required to complete the Significant Participant Business Status Certification form Parts A and B. Reference Appendix A - Significant Participant Business Status Certification.

☐ 2. All significant participants in the transaction other than the Federal Government are small businesses (including small businesses participating in a program described under section 9 of the Small Business Act (15 U.S.C. 638)) or nontraditional defense contractors.

If checked, all significant participants are required to complete the Significant Participant Business Status Certification form Part A only. Reference Appendix A - Significant Participant Business Status Certification.

☐ 3. At least one third of the total cost of the prototype project is to be paid out of funds provided by sources other than the Federal Government.

If checked, reference Appendix B - Cost Share Requirements.

☐ 4. The senior procurement executive for the agency determines in writing that exceptional circumstances justify the use of a transaction that provides for innovative business arrangements or structures that would not be feasible or appropriate under a contract, or would provide an opportunity to expand the defense supply base in a manner that would not be practical or feasible under a contract.

If checked, provide the determination signed by the Army Senior Procurement Executive.

CERTIFICATION

By checking this box and by typing my name below, I certify the above information is true and accurate to the best of my knowledge and belief. I authorize my electronic signature to carry the same weight and legal effect as my written signature.

____
Signature

____
Name

____
Title

____
Date

COST SHARE REQUIREMENTS:

Cost share is not a mandatory requirement. However, if a proposal does meet any of the other conditions required by 10 U.S.C. 2371b paragraph d, then it is anticipated the proposal will contain at least one third of the total Prototype Project cost as cost share. Beyond that, cost sharing is encouraged if possible as it leads to stronger Government-contractor technology leveraging.

The Offeror shall state the amount that is being proposed and whether the cost sharing is a cash contribution or in-kind contribution as discussed below. If the proposal contains multiple team members, this information shall be provided for each individual team member providing cost share.

Cost sharing includes any costs a reasonable person would incur to carry out (necessary to) Statements of Work not directly paid for by the Government. Cash contributions mean: Outlays of funds to perform the Technology Objective. Cash includes labor, materials, new equipment, and relevant subcontractor efforts. Sources include new Internal Research & Development (IR&D) funds, profit or fee from another contract, overhead or capital equipment expense pool. New IR&D funds offered to be spent on the Statement of Work and subject to the direction of the project's management may be utilized as cost share. All cash sharing availability must be clearly and convincingly demonstrated by the member. The Offeror will be required to provide financial reporting with appropriate visibility into expenditures of Government funds vs. private funds. Parallel research that might be related to the project, but will not be part of the Statement of Work or subject to the direction of the project's management will not be considered for cost sharing. All costs, fees, profits, general and administrative, bid and proposal costs, or intellectual property value incurred prior to the project award will not be accepted.

Unacceptable cost share sources include the following:

a) Sunk costs or costs incurred before the start of the proposed project
b) Foregone fees or profits
c) Foregone G&A or cost of money applied to a base of IR&D
d) Bid and proposal costs
e) Value claimed for intellectual property or prior research
f) Parallel research or investment, i.e., research or other investments that might be related to the proposed project but which will not be part of the Statement of Work. Typically these activities will be undertaken regardless of whether the proposed project is awarded.
g) Off-Budget Resources, i.e., resources that will not be risked by the Offeror in performance of the proposed project, will not be considered when evaluating cost share.

DEFINITIONS:

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Nontraditional Defense Contractor (NDC) – An entity that is not currently performing and has not performed, for at least the one-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to section 1502 of title 41 and the regulations implementing such section (see 10 U.S.C. 2302(9)).

Note: Per the statutory definition, NDCs are all entities that have not performed under a narrowly defined set of circumstances within one year of solicitation of the current OT opportunity. In order for an entity to not qualify for NDC status, it would need to meet all elements of the prescribed definition within that time period. This includes performance of a DoD contract or subcontract subject to full cost accounting standards (CAS) coverage within one year prior to solicitation of the Prototype OT opportunity. The effect of this narrow definition, is that a large number of entities will fall into the NDC category, including nearly all small business concerns, and even those firms that work exclusively with DoD. This is in part due to the exemptions to CAS coverage under 41 U.S.C. § 1502 and FAR Part 30, which exempt commercial contracts, Firm Fixed Price contracts based on adequate price competition, and any contract or subcontract with a small business concern, amongst other exemptions. Further, even where an entity is not outright exempt from CAS coverage, the entity may not have been subject to "full" CAS coverage. This is because full CAS coverage only applies to firms that receive a single CAS-covered contract award of $50 million or more; or received $50 million or more in net CAS-covered awards during its preceding cost accounting period.

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Nonprofit Research Institution (NRI) – A nonprofit institution, as defined in 15 U.S.C. 3703, and includes federally funded research and development centers, as identified by the National Scientific Foundation in accordance with the government wide Federal Acquisition Regulation issued in accordance with section 1303(a)(1) of title 41 (or any successor regulation thereto).

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Small Business – The Small Business Administration (SBA) establishes small business size standards on an industry-by-industry basis. (See 13 CFR 121). Small business size standards matched to industry North American Industrial Classification System (NAICS) codes are published by the Small Business Administration and are available at http://www.sba.gov/content/table-small-business-size-standards.

Traditional Defense Contractor – A Traditional Defense Contractor is an entity that does not meet the definition of a Nontraditional Defense Contractor (NDC).